TITLE 38—PENSIONS, BONUSES, AND VETERANS' RELIEF

Chapter I—Veterans' Administration

PART 17—MEDICAL

MISCELLANEOUS AMENDMENTS

Correction

In F. R. Doc. 52-11391, appearing on page 9561 of the issue for Tuesday, October 21, 1952, item 2 should read as follows:

2. In § 17.46, paragraph (a) (5) is amended to read as follows:

§ 17.46 *Persons entitled to hospital treatment or domiciliary care.* * * *

(a) * * *

(5) Members or former members of the uniformed services (Army, Navy, Air Force, Marine Corps, Coast Guard, Coast and Geodetic Survey, and Public Health Service) temporarily or permanently retired for physical disability or receiving disability retirement pay who require hospitalization for chronic diseases and who have no eligibility to hospitalization under laws governing the Veterans' Administration or who have eligibility do not elect hospitalization as Veterans' Administration beneficiaries (Pub. Law 351, 81st Cong., and Executive Order 10122 as amended by Executive Order 10400).

PART 36—SERVICEMEN'S READJUSTMENT ACT OF 1944

SUBPART A—TITLE III; LOAN GUARANTY

LOAN GUARANTY COMMITTEES

1. In § 36.4381, paragraphs (a) and (b) are amended to read as follows:

§ 36.4381 *Jurisdiction of regional office loan guaranty committee.* (a) The regional office committee will have original jurisdiction to adjudicate all cases in its area involving an indebtedness by a veteran to the United States of $2,500 or less, resulting from payment of the gratuity, or the guaranty or insurance of a loan under Title III of the Servicemen's Readjustment Act of 1944, as amended (sec. 694, et seq., 38 U. S. C.).

(b) The regional office committee will determine whether the indebtedness of the veteran borrower or any part thereof, shall be waived and if not waived (1) whether a compromise settlement shall be accepted (except as to litigated cases), or (2) whether the indebtedness on the loan shall or shall not be collected from compensation or pension; and whether a compromise settlement shall be accepted from any other obligor.

* * * * *

2. In § 36.4382, paragraph (b) is amended to read as follows:

§ 36.4382 *Jurisdiction of central office loan guaranty committee on waivers and compromises.* * * *

(b) The central office committee will determine whether the indebtedness of the veteran borrower or any portion thereof, shall be waived and if not waived (1) whether a compromise settlement shall be accepted (except in litigated cases), or (2) whether the indebtedness on the loan shall or shall not be collected from compensation or pension; and whether a compromise settlement shall be accepted from any other obligor.

* * * * *

3. In § 36.4384, paragraphs (a) and (d) (2) are amended and new paragraphs (e) and (f) are added as follows:

§ 36.4384 *Principles to be followed by loan guaranty committee for waivers and compromises.* (a) In determining whether an indebtedness or any part thereof shall be waived, the general equitable principles of section 28, World War Veterans Act, as amended (38 U. S. C. 453), as explained in Veterans' Administration claims procedures will be applied. The indebtedness may be waived in whole or in part: (1) When the veteran was not at fault in the creation of indebtedness which is being considered by the committee, and (2) where recovery of the whole or the part concerned (i) would defeat the purposes of the benefits otherwise authorized under the laws administered by the Veterans' Administration, or (ii) would be against equity and good conscience.

* * * * *

(d) * * *

(2) Money paid under mistake cannot be recovered where the payee is entitled in equity and good conscience to retain it.

* * * * *

(e) Proposed compromises do not involve the equitable considerations of paragraphs (a) through (d) of this section. An offer of a veteran or other obligor to effect a compromise of an indebtedness shall be reviewed by a committee within its respective authority and such offer may be accepted if deemed advantageous to the Government.

(f) The general waiver or compromise (whether by a release, covenant not to sue, or otherwise) of a veteran's indebtedness shall inure to the spouse of such veteran insofar as concerns said indebtedness, unles the obligation of the spouse is specifically excepted.

(Sec. 504, 58 Stat. 293, as amended; 38 U. S. C. 694d)

This regulation is effective October 30, 1952.

[SEAL] H. V. STIRLING,
Deputy Administrator.

[F. R. Doc. 52-11662; Filed, Oct. 29, 1952; 8:53 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 869]

FLORIDA

WITHDRAWING PUBLIC LANDS FOR USE OF THE DEPARTMENT OF THE NAVY IN CONNECTION WITH A GUNNERY RANGE

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Florida are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the Department of the Navy in connection with a gunnery range:

TALLAHASSEE MERIDIAN

T. 3 S., R. 32 W.,
Sec. 33, lots 5 to 20, inclusive.

The areas described aggregate 39.91 acres.

It is intended that the lands described shall be returned to the administration of the Department of the Interior when they are no longer needed for the purpose for which they are reserved.

JOEL D. WOLFSOHN,
Assistant Secretary of the Interior.

OCTOBER 24, 1952.

[F. R. Doc. 52-11621; Filed, Oct. 29, 1952; 8:46 a. m.]

[Public Land Order 870]

ALASKA

REVOKING EXECUTIVE ORDER NO. 2981 OF OCTOBER 25, 1918

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F. R. 4831), it is ordered as follows:

Executive Order No. 2981 of October 25, 1918, reserving the following-described lands in Alaska for the use of the War Department as a Signal Corps cable line, is hereby revoked:

A tract 150 feet wide on either side of the following-described line for the first 400 feet from the point of beginning, and 25 feet on either side thereof for the remainder of the distance: Beginning at a point on Frederick Sound, Mitkof Island, whence the Red Light Blinker, in Lat. 56°49' N. and Long. 132°56' W., bears northwest 2,700 feet; extending thence S. 65°21' W., 6,500 feet to the intersection of Seventh and "E" Streets, Petersburg Townsite; thence west, following the Middle of "E" Street, 1,825 feet to the intersection of Main and "E" Streets on the shore of Wrangell Narrows.

Portions of the lands released from withdrawal comprise a street in the Town Site of Petersburg, Alaska, or extend across an unsubdivided part of Petersburg Town Site, in U. S. Survey No. 1168. Such lands are not subject to application.

Another portion, comprising a strip of land varying in width from 50 feet for the greater portion of its length to 300 feet for a distance of 400 feet of its length, extends across sec. 26, T. 58 S., R. 79 E., Copper River Meridian. This order shall not otherwise become effective to change the status of such lands until 10 a. m. on the 91st day after the date of this order. At that time the said lands shall become subject to application, petition, location, and selection, subject to valid existing rights, the provisions of existing withdrawals, the requirements of applicable laws, and the 90-day preference right filing period for veterans and others entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279-284), as amended.

Information showing the periods during which and the conditions under which veterans and others may file applications for these lands may be obtained on request from the Manager of the Land Office at Anchorage, Alaska.

JOEL D. WOLFSOHN,
Assistant Secretary of the Interior.

OCTOBER 24, 1952.

[F. R. Doc. 52-11620; Filed, Oct. 29, 1952; 8:45 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

[Rev. S. O. 872, Amdt. 4]

PART 95—CAR SERVICE

MOVEMENT OF GRAIN TO TERMINAL ELEVATORS BY PERMIT

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 24th day of October A. D. 1952.

Upon further consideration of the provisions of Revised Service Order No. 872 (16 F. R. 8185, 10560; 17 F. R. 896, 4950), and good cause appearing therefor: It is ordered, that:

Section 95.872 *Movement of grain to terminal elevators by permit*, of Revised Service Order No. 872, be, and it is hereby, amended by substituting the following paragraph (e) hereof for paragraph (e) thereof:

(e) *Expiration date.* This section shall expire at 11:59 p. m., March 31, 1953, unless otherwise modified, changed, suspended, or annulled by order of this Commission.

It is further ordered, that this amendment shall become effective at 11:59 p. m., October 31, 1952; that a copy of this order and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383, as amended; 49 U. S. C. 12. Interprets or applies sec. 1, 24 Stat. 379, as amended; 49 U. S. C. 1)

By the Commission, Division 3.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 52-11642; Filed, Oct. 29, 1952; 8:50 a. m.]

[S. O. 887, Amdt. 1]

PART 95—CAR SERVICE

SUBSTITUTION OF REFRIGERATOR CARS FOR BOX CARS

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 24th day of October A. D. 1952.

Upon further consideration of Service Order No. 887 (17 F. R. 5954), and good cause appearing therefor: It is ordered, that:

Section 95.887 *Substitution of refrigerator cars for box cars*, of Service Order No. 887, be, and it is hereby amended by substituting the following paragraph (d) for paragraph (d) thereof:

(d) *Expiration date.* This section shall expire at 11:59 p. m., March 31, 1953, unless otherwise modified, changed, suspended or annulled by order of this Commission.

Effective date. This amendment shall become effective at 11:59 p. m., October 31, 1952.

It is further ordered, that a copy of this amendment and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(Sec. 12, 24 Stat. 383, as amended; 49 U. S. C. 12. Interprets or applies sec. 1, 24 Stat. 379, as amended; 49 U. S. C. 1)

By the Commission, Division 3.

[SEAL] GEORGE W. LAIRD,
Acting Secretary.

[F. R. Doc. 52-11643; Filed, Oct. 29, 1952; 8:50 a. m.]

[Rev. S. O. 888]

PART 95—CAR SERVICE

MINIMUM LOADING OF CARLOAD TRANSFER FREIGHT REQUIRED

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 24th day of October A. D. 1952.

It appearing, that the Defense Transport Administration has made representations to the Interstate Commerce Commission that the railroads are engaged in the practice of lightly loading transfer part-shipments in box cars at origin and transfer points; that such practice is wasteful and aggravates the car shortage, depleting and diminishing the use, control, supply, distribution and interchange of such cars which are urgently needed for the movement of certain essential defense materials. The Commission is of the opinion an emergency requiring immediate action exists in all sections of the country where this practice is permitted. It is ordered, that:

§ 95.888 *Minimum loading of carload transfer freight required.* (a) (1) No common carrier by railroad subject to the Interstate Commerce Act shall permit carload shipments in box cars to be stopped-off in transit to partially load under tariff provisions where the carrier may for operating convenience, or upon request of the shipper, place a separate car at the stop-off point, or points, to be loaded with the freight that would otherwise be loaded thereinto the car, or cars, containing the shipment ordered to be stopped, and such car, or cars, shall not be treated as though they had been partially loaded at the stop-off point, or points, unless the amount of such freight at point of origin, or the stop-off point, or points, equals or exceeds 15,000 pounds for each car.

(2) No common carrier by railroad, subject to the Interstate Commerce Act, shall permit carload shipments in box cars to be stopped-off in transit to partially unload under the tariff provisions where the carrier will, at its convenience, or upon specific request of a shipper, transfer that portion of the shipment consigned to either the stop-off point, or points, or to the final destination, and forward shipment to stop-off point, or points, or the final destination in another box car unless the amount of such freight destined to the stop-off point, or points, equals or exceeds 15,000 pounds for each car. In the event that such car, or cars, is loaded with less than the minimum herein provided that shipment shall not be transported.

(b) *Application.* The provisions of this section shall apply to shipments moving in intrastate commerce as well as to those moving in interstate commerce.

(c) *Effective date.* This section shall become effective at 7:00 a. m., November 1, 1952.

(d) *Expiration date.* This section shall expire at 6:59 a. m., April 1, 1953, unless otherwise modified, changed, suspended or annulled by order of this Commission.

(e) *Exceptions.* Any exceptions to the provisions of this section shall be covered by special permits issued by Mr. Charles W. Taylor, Director, Bureau of Service, Washington 25, D. C., for the use of certain types of box cars.

(f) *Rules and regulations suspended.* The operation of all rules and regulations insofar as they conflict with the provisions of this section is hereby suspended.

(g) *Announcement of suspension.* Each of such railroads, or its agent, shall publish, file, and post a supplement to each of its tariffs affected hereby, in substantial accordance with the provisions of Rule 9 (k) of the Commission's Tariff Circular No. 20 (§ 141.9 (k) of this chapter) announcing the suspension of any of the provisions therein.

It is further ordered, that this order vacated and supersedes Service Order No. 888 and that a copy of this order and direction shall be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.